ORDER BELOW EXHIBIT No.01 IN CRI.M.A.NO. 257/2025.

This is an application filed by applicant to direct the concerned police station to investigate as per section 175(3) of the Bharatiya Nagarik Suraksha, 2023.

2. Perused the application and documents file along it. Heard Ld. Counsel for the applicant.

3. So, far as the allegations are concerned the same is based on documentary evidence. Section 175(3) of the Bharatiya Nagarik Suraksha, 2023 confers discretionary power upon the Magistrate to avail the discretion in suitable case. Wherein the investigation by police is sine quo non. As mentioned above allegations are based upon documentary evidence, which can be inquired by this court. Thus, under such circumstances I am not inclined to avail discretionary power under section 175(3) of the Bharatiya Nagarik Suraksha, 2023. Hence, I pass following order :-

O R D E R

1. The prayer of investigation under section 175(3) of the Bharatiya Nagarik Suraksha, 2023 is rejected.

2. The matter put up for applicant's verification.

AMIT ANIL KULKARNI
Digitally signed by AMIT ANIL KULKARNI
Date: 2025.11.18 11:21:16 +0530

Place : Pune.
Date : 17/11/2025.

(A.A.Kulkarni)
3rd Jt. Judicial Magistrate First Class,
Cantonment Court, Pune.